

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. B.B.B. (hereinafter, the claimant), upon learning that his data had been registered in a solvency file due to a debt, sent a letter to APLAZAME S.L. requesting "(...) all the necessary documentation informing me of the reason for such a claim and how this amount was generated, principal, applied interests, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. (...)", as well as the precautionary removal of his data from said files, indicating that he has not received the legally established response. He attached, along with his claim letter, a copy of the request and proof of its sending, dated February 24, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this claim was forwarded to the respondent party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The electronic notification resulted in "Expired". Therefore, the claim was resent by postal mail, which was returned with the annotation "Returned to origin due to Excess (Not collected at office)".

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests had been satisfied. Consequently, on July 24, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data decided to admit the claim for processing.

The aforementioned agreement granted the respondent party a hearing period, to present any arguments deemed appropriate within ten business days. The notification of the admission agreement was returned by the Postal Service with the annotation "Unknown".

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

On September 28, 2023, a letter was received in this Agency notifying that WIZINK BANK S.A.U completed a merger by absorption whereby it absorbed two entities, including APLAZAME S.L.U.

"As a result of this operation, WiZink Bank S.A.U has assumed all rights and obligations attributable to both entities (Aplazame and Lendrock) which are now extinguished."

Therefore, the aforementioned admission agreement was again sent to WIZINK BANK S.A.U. (hereinafter, the respondent party), which responded:

"(...) First of all, it is necessary to indicate that the claimant maintains a contractual relationship with this entity, as a result of the 6 Aplazame Payment Service contracts, signed at the time with Aplazame, S.L., now WIZINK, (...)

Additionally, we have been able to verify that B.B.B. had with this entity another 32 Aplazame Payment Service contracts, which were canceled due to repeated non-compliance with his payment obligations, as a consequence of the portfolio sale contract signed in June 2023 between WIZINK and Cabot Securitisation Europe Limited (hereinafter, CABOT). The parties informed the claimant in letters dated June 19, 2023, about the portfolio assignment of each contract, whereby CABOT acquired the credit rights derived from the aforementioned 32 contracts, becoming responsible for the processing of the claimant's data. Furthermore, the claimant was informed that to obtain information about these contracts or to request any of the rights recognized by data protection regulations to the interested parties, he should contact the new Data Controller, CABOT. It should be noted, therefore, that from the aforementioned date of portfolio sale, these contracts were canceled as well as the personal data of

the claimant derived from these contracts, including the removal of data from credit information systems by my represented party, ceasing to be the Data Controller and becoming the new Data Controller CABOT.

(...) After conducting the appropriate checks in WIZINK's systems, upon receiving the file referred to in this letter, it is evident that:

- B.B.B. has been failing to meet his payment obligations regarding the financing products contracted under the Aplazame brand listed above, and as a consequence, my represented party has informed the claimant of these unpaid amounts on several occasions, carrying out actions to recover the aforementioned debts.
- The inclusion of the claimant's personal data in the common solvency and credit files referred to by B.B.B. in his claim was carried out in accordance with the obligations established in the regulations on data protection.

(...) After the checks carried out, we have been able to verify that this entity informed him on several occasions about the consequences of failing to satisfy the debt, which consisted of including his data in credit information systems.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

(...) In any case, although the debts that the claimant has with WIZINK are certain, due, and enforceable, this entity proceeded to temporarily deactivate the unpaid operations registered in the name of the claimant in common solvency files on October 2, 2023, pending resolution of the present file, as required by the regulations, upon receiving from the AEPD the transfer of the complaint from B.B.B. This deactivation specifically referred to the contribution related to contract number: e A.A.A., given that all other contributions had been deactivated in June 2023 when the aforementioned portfolio sale took place. When my represented party confirmed to the claimant the deactivation of their data in the aforementioned files, as can be seen in Document Number 1, WIZINK also proceeded to address B.B.B.'s right to limitation.

(...) In conclusion, it has been established that B.B.B. (i) has an ongoing contractual relationship with WiZink related to 6 deferred payment service contracts; (ii) that they defaulted on the amounts indicated in this document; (iii) that they had a certain, due, and enforceable debt with WiZink; (iv) that in view of the complaint filed by the claimant before the AEPD regarding the inclusion of their data in common solvency files, WiZink proceeded to temporarily deactivate their data in such files pending resolution of the complaint; (v) that WIZINK has addressed the rights of access and limitation referred to in the complaint upon receiving the file from the AEPD; and (vi) that therefore WiZink has fulfilled all its obligations regarding data protection, including those related to the inclusion of the claimant's data in credit information systems."

FOURTH: After examining the document submitted by the responding party, it is transferred to the claimant, so that, within a period of ten working days, they may formulate any allegations they deem appropriate, failing to submit allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/8

in its article 57, among others, the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding their obligations, as well as to address the complaints submitted by an interested party and investigate, in a timely manner, the reasons for such complaints. Correspondingly, article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to provide evidence of having given the complainant the appropriate response.

The result of this forwarding did not allow for the satisfaction of the claims of the complainant.

Consequently, on July 24, 2023, for the purposes provided in its article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated in article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to attend to the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/8

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the

data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;
- d) the data subject has objected to processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction."

It should be noted that the right to restrict processing enables the claiming party to have the processing

of data limited when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has objected to processing, while verifying whether the legitimate grounds of the controller override those of the claiming party.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/8

VI

Conclusion

Article 4 of the GDPR, Definitions, states that:

“For the purposes of this Regulation, the following definitions shall apply:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)”

In the case analyzed, from the examination of the documentation provided, it has been established that the entity with which the claimant contracted various loans, and before which they exercised their rights of access and limitation, has been absorbed by the defendant. The defendant, upon becoming aware of this procedure, has proceeded to send the claimant a letter addressing the right of access by providing them with the documentation at their disposal, and informing them that, as this procedure is ongoing, they have proceeded to temporarily deactivate their data in common solvency files, thus addressing the right of limitation.

-

Regarding the right of access, the defendant has sent the claimant a copy of various documents related to the contracting of the loans.

From this response, it can be inferred that they have provided the requested information, “(...) how the amount has been generated, principal, applied interests, commissions, etc., (...)” therefore, the claim submitted to this Agency is dismissed.

The right of access is the right of data subjects to know what data is being processed by the data controller, the data subject to processing, the purpose of this processing, the origin of the data, and whether it has been or will be communicated to third parties.

-

Regarding the right of limitation, the defendant has temporarily deactivated the claimant's data. Consequently, the claim submitted should be dismissed.

It should be noted that the right to limit processing enables the claimant to have the processing of their data limited when the accuracy of the personal data is contested, for a period that allows the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the establishment, exercise, or defense of claims; or when the data subject has objected to the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Data Protection Agency to resolve the conflict underlying between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the claim made by Mr. B.B.B. against WIZINK BANK S.A.U.

SECOND: TO NOTIFY this resolution to Mr. B.B.B. and to WIZINK BANK S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Data Protection Agency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es